

1. From paragraph 63 (page 13, line 17), the words: “intentional and malicious, ” and the phrase “intentional and malicious” wherever it appears in that paragraph in reference to Defendant Holiday Inn Express & Suites;
2. From the Prayer for Relief, subparagraph B (page 22, lines 19–22): “For punitive damages pursuant to Civil Code §3294 against the individual defendants only for intentional misconduct, malice, and oppression, to punish wrongdoing and deter future misconduct;” — to the extent the prayer seeks punitive damages against Defendant Branden Becenti;
3. From the Prayer for Relief, subparagraph C (page 22, line 23): “For attorney fees;” — in its entirety as to Moving Defendants Holiday Inn Express & Suites and Branden Becenti.

Moving party to provide notice pursuant to CCP 1019.5.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2504787	HUNTINGTON VS VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION	MOTION TO ENFORCE COMPLIANCE WITH THE COURT'S 02.09.26 DISCOVERY ORDER BY JEFF HUNTINGTON, LI CAO

Tentative Ruling: Granted in part.

Responding party is ordered to serve verified further responses to the Demand for Production of Documents, Set One, No. 15-22, without objections within 30 days of service of notice (CCP § 2031.310).

Moving party to provide notice pursuant to CCP 1019.5.

This is a lemon law action. On July 1, 2025, Plaintiffs Jeff Huntington and Li Cao (“Plaintiffs”) filed a Complaint against Defendant Volkswagen Group of America, Inc. (“Defendant”) for: (1) breach of express warranty in violation of the Song Beverly Act; (2) breach of implied warranty in violation of the Song Beverly Act; and (3) violation of section 1793.2 of the Song Beverly Act. In the Complaint, Plaintiffs allege that on August 12, 2022, they purchased a 2022 Audi A8 L (the “Vehicle”), on which Defendant issued a written warranty. (Complaint at ¶¶ 8-9, 21.) The Vehicle was delivered to Plaintiffs with defects to the suspension, engine, and electrical systems that impaired the use, value, and safety of the Vehicle. (Complaint at ¶¶ 10, 22, 26.) Plaintiffs brought the Vehicle to Defendant for repairs, and Defendant could not conform the Vehicle to the warranty within a reasonable number of attempts. (Complaint at ¶¶ 11-14, 27-28.)

On August 25, 2025, Plaintiffs propounded requests for production of documents (“RFPs”) on Defendant. On October 31, 2025, Defendant served responses to the RFPs and produced some responsive documents. On December 31, 2025, Plaintiffs filed a motion to compel further responses to the RFPs.

On February 9, 2026, the Court granted Plaintiffs’ motion as to RFP nos. 1-14; granted the motion as to RFP nos. 15-30, but limited to vehicles of the same year, make, and model as the Vehicle and defects that Plaintiffs contend impaired the use, value, and safety of the Vehicle; and denied the motion as to RFP no. 31. The Court ordered Defendant to “serve verified responses to the Demand for Production of Documents, Set One, without objections, within 30 days of service of notice consistent with this order.” (2/9/26 Minute Order.) As of the date identified by the Court for further responses (March 11, 2026), Defendant failed to serve such responses.

Plaintiffs now move for an order compelling Defendant to comply with the court's 2/9/26 order, and for sanctions due to Defendant's willful disobedience of the court order.

In opposition, Defendant argues that the motion should be denied because it has fully complied with the 2/9/26 order; the request for sanctions does not comply with C.C.P. § 2023.040; and prospective sanctions are not appropriate because Defendant did not willfully disobey the order.

In reply, Plaintiffs argue that Defendant waited months to comply with the order requiring it to provide responses without objections, and it still has not produced documents responsive to RFP nos. 15-22.

Motion to Compel Further Response(s)

Pursuant to C.C.P. § 2031.310(i), if a party fails to obey an order compelling a further response to RFPs, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (C.C.P. § 2031.310(i); see also, C.C.P. § 2023.030(a)-(d) [when a party fails to obey a court order compelling responses to discovery requests, the court may impose monetary, issue, evidentiary and/or terminating sanctions].)

Here, there is no dispute that as of the date identified by the Court for further responses (March 11, 2026), Defendant failed to serve such responses. On April 3, 2026, 23 days later (and 53 days after the order was entered), Defendant served further responses to the RFPs, but the responses still included objections the Court had previously determined lacked merit [Decl. of Alexander Kim ["Kim Decl."] at ¶ 7, Ex. C], while the court order required Defendant to serve responses without objections. (2/9/26 Minute Order.) Therefore, at the time the motion was filed, Defendant had still not complied with the Court's order. On May 21, 2026 (45 days after this motion was filed, and more than 14 weeks after the order was issued), Defendant served further responses to the RFPs, without objections, as ordered by the Court on February 9, 2026. (Kim Decl. at ¶ 9, Ex. E.) Further, Defendant only produced documents responsive to RFP no. 30 on June 8, 2026, four months after the order was entered. Therefore, while responses and these documents have now been provided, it seems clear that would not have occurred without this motion.

Additionally, Plaintiffs argue and produce evidence that Defendant has not produced documents responsive to RFP nos. 15-22, including training materials, Salesforce articles, and policies and procedures used in evaluating customer complaints, buyback requests, and complying with the Song Beverly Act. (Decl. of Xavier P. Hozven ["Hozven Decl."] at ¶¶ 7-16.) Defendant, on the other hand, contends that all responsive documents have been provided. In its responses to RFP nos. 15-22, Defendant states "VWGoA will comply in whole and all responsive documents in the demanded category that are in VWGoA's possession, custody, or control and to which no objection has been made will be included in the attached document production." (Kim Decl., Ex. E, nos. 15-22.) Since Defendant inappropriately qualifies its production to documents "to which no objection has been made," there is insufficient evidence showing that all responsive documents have actually been provided. Defendant is ordered to produce all documents in its possession, custody, or control that are responsive to RFP nos. 15-22. If Defendant still contends that all such documents have been provided, they are required to provide a further/amended response to RFP nos. 15-22 stating this and making clear that no documents were withheld.

Under the circumstances (Defendant's significant delay in providing objection-free responses and producing documents, and potentially improperly withholding certain responsive documents), sanctions against Defendant and its counsel would be appropriate. (See, C.C.P. § 2031.310(i);

see also, C.C.P. § 2023.030(a).) However, Defendant is correct that Plaintiffs did not comply with the procedural requirements necessary for the imposition of sanctions. C.C.P. § 2023.040 states that “[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney whom the sanction is sought, and specify the type of sanctions sought. The notice shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth fact supporting the amount of any monetary sanctions sought.” Monetary sanctions are not to punish but to make the moving party whole, which means they are based on attorney fees and costs incurred as a result of the misuse of discovery. (See *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 790; *Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) If the court is unable to ascertain from the record what fees and costs were incurred as a result of the discovery misuse, sanctions can be denied. (See *Cornerstone Realty Advisors, LLC, supra*, 56 Cal.App.5th at 790-791.)

Here, Plaintiffs do not identify the type of sanctions sought against Defendant in their Notice. They also only identify Defendant in the Notice, while also seeking sanctions against defense counsel in the memorandum of points and authorities. Finally, they do not provide a declaration with any facts showing the amount of attorney's fees incurred as a result of the misuse of discovery. Accordingly, the request for sanctions must be denied.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2507250	DEAN VS KAISER FOUNDATION HEALTH PLAN, INC.	MOTION FOR RECONSIDERATION OF [CCP 1048]

Tentative Ruling: Denied.

Plaintiff requests for the court to reconsider its prior ruling on Vexatious Litigant Status from March 19, 2026.

Responding party to provide notice pursuant to CCP 1019.5.

Motion for Reconsideration

A motion for reconsideration must be based on new or different facts, circumstances or law. (C.C.P. §1008(a).) The legislative intent was to restrict these motions to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden is comparable to that of a party seeking a new trial on the ground of newly discovered evidence; that is, the information must be such that the moving party could not with reasonable diligence have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.) A motion for reconsideration must be brought within 10 days of the service of the written notice of entry of the order (C.C.P. §1008(a)), while a renewal of a motion under C.C.P. §1008(b) has no explicit time limit.

“The ‘different state of facts’ language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier.” (*Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.) “The moving party’s burden is the same as that of a party seeking new trial on the ground of ‘newly discovered evidence, which he could not, with reasonable diligence, have discovered and produced at the trial.” (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198.) And so the moving party must provide the trial court with a satisfactory explanation as to why he or she failed to produce the evidence at an earlier time. (*Mink v. Superior*